Enterprise Cloud SaaS & Master Subscription Agreement

ENTERPRISE CLOUD SAAS MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is made effective as of January 15, 2026, by and between CloudPulse Enterprise Systems, Inc., a Delaware corporation ("Provider"), and the subscribing entity ("Customer").

SECTION 1: SUBSCRIPTION AND LICENSE GRANT

Provider hereby grants Customer a non-exclusive, non-transferable, revocable subscription license to access the CloudPulse Enterprise Intelligence Platform ("Platform") solely for Customer's internal business operations. Customer shall not reverse engineer, decompile, or create derivative works. Any violation shall incur immediate liquidated damages of $75,000 per occurrence.

SECTION 2: FEES, PAYMENT TERMS, AND AUTOMATIC SURCHARGES

(a) Fees shall be billed annually in advance. Invoices are payable within fifteen (15) days of receipt. Any balance unpaid after thirty (30) days shall accrue interest at the rate of 1.5% per month (18% per annum) or the maximum legal rate, plus a 5% administrative late penalty.

(b) Customer agrees to reimburse Provider for all costs of collection, including actual attorney's fees and litigation expenses incurred.

SECTION 3: TERM AND AUTOMATIC RENEWAL TRAP

This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years ("Initial Term"). THIS AGREEMENT SHALL AUTOMATICALLY RENEW FOR SUCCESSIVE TWO (2) YEAR TERMS UNLESS CUSTOMER PROVIDES WRITTEN NOTICE OF NON-RENEWAL VIA CERTIFIED POSTAL MAIL NOT LESS THAN NINETY (90) DAYS PRIOR TO THE EXPIRATION OF THE CURRENT TERM. Upon any renewal, subscription fees shall automatically increase by twenty-five percent (25%) over the preceding term's rate.

SECTION 4: DATA USAGE, DERIVATIVE DATA, AND AI TRAINING

Customer grants Provider a perpetual, irrevocable, worldwide, royalty-free license to ingest, store, anonymize, aggregate, and process Customer Data for the purposes of training machine learning models, improving algorithms, and developing commercial analytics products. Provider shall retain sole ownership of all derived analytical models.

SECTION 5: UNILATERAL INDEMNIFICATION AND DEFENSE

Customer shall defend, indemnify, and hold harmless Provider, its officers, directors, employees, and affiliates from and against any and all claims, damages, liabilities, losses, costs, and expenses (including attorney's fees) arising out of or related to: (i) Customer's use of the Platform; (ii) any breach of Customer representations; or (iii) third-party claims alleging infringement caused by Customer data. Provider shall have no obligation to defend or indemnify Customer against third-party intellectual property claims.

SECTION 6: EXTREME LIMITATION OF LIABILITY

IN NO EVENT SHALL PROVIDER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING LOSS OF PROFITS, DATA CORRUPTION, OR BUSINESS INTERRUPTION. PROVIDER'S MAXIMUM AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL BE STRICTLY CAPPED AT THE LESSER OF $1,000 OR THE FEES ACTUALLY PAID BY CUSTOMER IN THE ONE (1) MONTH PRECEDING THE EVENT GIVING RISE TO LIABILITY.

SECTION 7: TERMINATION FOR CONVENIENCE AND PENALTIES

Provider may terminate this Agreement for convenience at any time upon thirty (30) days written notice. Customer may NOT terminate for convenience. If Customer attempts to cancel or terminates without cause prior to term expiration, Customer shall immediately pay Provider an Early Termination Fee equal to one hundred percent (100%) of the remaining unpaid subscription fees for the unexpired term.

SECTION 8: DISPUTE RESOLUTION AND CLASS ACTION WAIVER

All disputes arising under or relating to this Agreement shall be resolved exclusively by binding confidential arbitration administered by JAMS in Wilmington, Delaware. CUSTOMER HEREBY EXPRESSLY WAIVES ANY RIGHT TO PARTICIPATE IN A CLASS ACTION LAWSUIT OR REPRESENTATIVE PROCEEDING AGAINST PROVIDER. Each party shall bear its own arbitration costs, except Customer shall pay Provider's costs if Provider prevails.